



DEPARTMENT OF PUBLIC SAFETY GEORGIA STATE PATROL

PURSUIT CRITIQUE

TROOPER NAME – TFC Cody Cantrell #136, Tpr. Michael Noeller #577

Work Assignment: Troop/Division - A; Post/Unit – 43-Calhoun

INCIDENT REPORT # DPS00151655

Related Crash Reports: C000937690 ; _____ ; _____

P.I.T. Involved: No

S.C.R.T. Involved: No

Special Investigations Unit Involved: No

Use of Force Involved: Yes

MEETING

1. Document the date, time and location of the pursuit critique meeting with the involved trooper.

Date: 02/29/2024

Time: 13:00 hours

Location: Post 43, Calhoun

2. List all personnel present at the meeting by name and rank. Include the trooper, an NCO in whose territory the pursuit was terminated, and the trooper's immediate supervisor.

Personnel present: Lieutenant Seth Thompson, Sgt. Michael Best, TFC Cody Cantrell (Tpr. Michael Noeller via conference call)

INITIATION

1. Provide the date and time the trooper became involved in the pursuit.

Date: 02/03/2024

Time: 10:40 hours

2. Explain the circumstances that led to the trooper's involvement in the pursuit.

TFC Garrett King #751 of Post 3, Cartersville was involved in a pursuit with two motorcycles on I-75 northbound in Gordon County. Both violators were operating 2024 BMW 1000 motorcycles, black in color. TFC Cantrell joined the pursuit near the Gordon/Bartow County line. They lost contact with one of the motorcycles at the Adairsville Rest Area, and they continued to pursue the second motorcycle. The pursuit with the second motorcycle terminated on I-75 northbound near mile marker 319. Shortly after effecting the arrest, TFC Cantrell observed the other motorcycle traveling northbound on I-75. TFC Cantrell pursued the motorcycle after it passed his location and, when he signaled the violator with emergency lights and siren to stop, the violator instead accelerated and initiated a pursuit. Trooper Noeller joined in the pursuit as a secondary unit near mile marker 321.

3. If trooper's involvement was the result of a request from another agency, provide details regarding the request.

☒ N/A

If Yes, explain:

4. List the number and identity of other agencies and officers involved in the pursuit.

☐ N/A

If needed, list: In addition to TFC Cantrell and Tpr. Noeller, MCO James Nunn #7772 of the DPS Motor Carrier Compliance Division was involved in the pursuit.

5. If other occupants were in the patrol vehicle, identify them and state their reason for being in the vehicle.

☒ N/A

If Yes, list:

6. Did the trooper take appropriate safety precautions?

☒ Yes

☐ No

If no, explain:

7. Did the trooper eliminate distractions such as FM radio noise?

☒ Yes

☐ No

If no, explain:

COMMUNICATION

1. If the reporting trooper initiated the pursuit by means of observing a violation and attempting a traffic stop, explain the communication that took place between the trooper and the CEO.

☐ N/A

If Yes, explain: TFC Cantrell advised Troop A Communications that the other motorcycle that had fled from TFC King was passing his location on I-75 northbound at mile marker 319. TFC Cantrell advised that he was in pursuit when the violator rapidly accelerated. He gave a description of the violator and his vehicle, and he advised no tag was displayed. The radios remained cleared for emergency traffic following the termination of TFC King's pursuit.

2. Did the trooper relay pertinent information to the CEO including:

- Location and direction of travel.
- Description of the pursued vehicle.
- Number and description of occupants.
- Information regarding the use of firearms, threat of force, or other hazard.
- Options for terminating the pursuit.
- Observed danger to public safety.

- Any need for assistance.

☒ Yes ☐ No If no, explain:

3. Explain any communication that took place between the CEO and other law enforcement agencies or officers in the area.

☐ N/A Explain: Dispatcher Carden contacted Whitfield County 911 to request assistance as the pursuit entered their jurisdiction. Senior Dispatcher H. Jennings broadcasted the pursuit to other responding units.

4. If the reporting trooper became involved in the pursuit at the request of another agency, explain any communication that took place between the trooper and another officer of the requesting agency. Give details of communication between the CEO and the requesting agency regarding the location, direction of travel, nature of the offense, any pending warrants, and details of erratic driving behavior illustrating the potential danger to the public if the suspect is not immediately apprehended.

☒ N/A If Yes, explain:

5. Did the trooper articulate his observations?

☒ Yes ☐ No If no, explain:

6. At the conclusion of the pursuit, did the trooper advise the CEO immediately, so other units would be familiar with the location to offer assistance, or slow in an effort to reduce the likelihood of further risk of injury to either a trooper or a member of the general public?

☒ Yes ☐ No If no, explain:

7. Discuss any needed areas of improvement with the CEO.

☒ N/A If Yes, explain:

PURSUIT

1. Describe the route the pursuit traveled, its duration and distance.

Describe: The pursuit began on I-75 northbound near Exit 320 (GA 136). The pursuit terminated on I-75 northbound near Exit 326 (Carbondale Road). The pursuit traveled a total distance of 5.4 miles and lasted approximately 3 minutes, 33 seconds.

2. Were the trooper's actions during the pursuit objectively reasonable?

☒ Yes ☐ No If no, explain:

3. If the pursuit traveled into another post's territory, explain whether the initiating trooper yielded to a trooper whose territory the pursuit was in.

☐ N/A If Yes, explain: The pursuit entered Whitfield County which is assigned to Post 5, Dalton. TFC Cantrell did not encounter a Post 5 Trooper prior to pursuit termination.

4. If the initiating trooper yielded the primary position to another unit, explain whether he proceeded to the termination point of the pursuit to provide guidance and information for the arrest of the violator.

☒ N/A If Yes, explain:

5. Explain if there were any factors during the pursuit that indicated the possible commission of a felony.

☐ N/A

If Yes, explain: The violator's actions during the pursuit support a charge of Felony Fleeing and Attempting to Elude. The violator was operating a motorcycle with no tag displayed, giving rise to the suspicion that the vehicle was possibly stolen.

6. Did the trooper articulate his observations?

☒ Yes

☐ No

If no, explain:

7. Did the trooper practice commentator driving?

☒ Yes

☐ No

If no, explain:

8. Did the trooper remain calm and professional during the pursuit?

☒ Yes

☐ No

If no, explain:

DRIVING SKILLS

1. Did the trooper use due caution when operating his vehicle during the pursuit?

☐ Yes

☒ No

If no, explain: While attempting to catch up to the pursuit, approximately 25 seconds elapsed before Tpr. Noeller activated his emergency siren.

2. Were the driving skills/techniques initiated appropriately?

☐ Yes

☒ No

If no, explain: While attempting to catch up to the pursuit, approximately 25 seconds elapsed before Tpr. Noeller activated his emergency siren.

3. Were the driving skills/techniques appropriate during the pursuit?

☐ Yes

☒ No

If no, explain: While attempting to catch up to the pursuit, approximately 25 seconds elapsed before Tpr. Noeller activated his emergency siren.

4. Were the driving skills/techniques appropriate during termination?

☒ Yes

☐ No

If no, explain:

5. Did the trooper appear to experience adrenalin rush, tunnel vision, or any other internal/external factors?

☐ No

If Yes, explain: TFC Cantrell and Tpr. Noeller stated they experienced an adrenalin rush.

6. Did the trooper get into the danger zone due to adrenalin rush, tunnel vision, or other factors?

☒ No

If Yes, explain:

EQUIPMENT

1. Were the blue lights and siren in operation during the entire pursuit?

☐ Yes ☒ No If no, explain: While attempting to catch up to the pursuit, approximately 25 seconds elapsed before Tpr. Noeller activated his emergency siren.

2. If the patrol car was equipped with wig-wag headlights, were they in operation during the entire pursuit?

☒ Yes ☐ No If no, explain:

3. Was the in-car camera working properly?

☒ Yes ☐ No If no, explain:

4. Was the trooper's microphone working properly?

☒ Yes ☐ No If no, explain:

TERMINATION

1. Did the trooper continue the pursuit to a conclusion? If not, explain the reasons.

☒ Yes ☐ No If no, explain:

2. Was there a good probability of the suspect's arrest at a later time because of positive identification?

☒ N/A If Yes, explain:

3. Articulate attempts taken by the trooper to utilize pursuit termination techniques, such as tire deflating devices, roadblocks, P.I.T. maneuver, and trooper discretion.

☐ N/A Explain: TFC Cantrell made one attempt to terminate the pursuit with Channelization. The violator was able to avoid stopping by driving around TFC Cantrell. When Tpr. Noeller joined the pursuit, TFC Cantrell passed the violator a second time and Tpr. Noeller drove to the violator's left, in an attempt to utilize a Rolling Roadblock to stop the violator. The violator again was able to pass TFC Cantrell and continue to flee. A second Rolling Roadblock attempt was made, with TFC Cantrell passing and slowing the violator, and Tpr. Noeller driving to the violator's left. The attempt failed when the violator changed from the middle lane to the left lane and struck Tpr. Noeller's patrol car. The collision resulted in the violator losing control, and his vehicle overturned.

4. Expound on safety precautions utilized by the trooper during and after the pursuit.

☐ N/A Explain: TFC Cantrell employed his emergency lights and siren throughout the pursuit. Each Trooper exercised due regard for other motorists traveling on the interstate. During Rolling Roadblock and Channelization attempts, TFC Cantrell and Tpr. Noeller were careful not to initiate contact with the violator.

5. Articulate the existing traffic conditions during the pursuit, realizing the conditions may differ at various times during the pursuit.

Explain: The pursuit occurred during daylight hours and the weather was clear. The road surface was dry. Traffic conditions would be characterized as light.

6. Address whether there are any conditions that would create additional danger to the public by continuing the pursuit.

☒ N/A

If Yes, explain:

7. Address whether there were any conditions that necessitated the pursuit being brought to an immediate conclusion and describe the conditions.

☒ N/A

If Yes, explain:

8. Establish whether the violator was an immediate threat to the trooper, the public or themselves.

☐ N/A

If Yes, explain: During the pursuit, the violator reached speeds in excess of 130 mph and drove in the emergency lanes. He recklessly swerved toward patrol cars, ultimately striking a patrol car and crashing his vehicle. He showed no regard for the safety of himself or others.

9. Outline whether the use of deadly force was justified and if so, why it was justified.

☒ N/A

If Yes, explain:

10. Establish whether the method of termination was reasonable based on the facts gathered during the pursuit, and state those facts.

☒ N/A

If Yes, explain:

11. If there were any injuries, state who received them, the type and severity.

☐ N/A

If Yes, explain: The violator suffered visible injuries as a result of striking a patrol car, losing control, and overturning his vehicle. The violator was thrown from his vehicle after it overturned.

12. If there was a fatality, provide basic facts surrounding the circumstances.

☒ N/A

If Yes, explain:

13. Address any damage to vehicles.

☐ N/A

If Yes, explain: The violator's vehicle sustained disabling damage during the crash that terminated the pursuit. Tpr. Noeller's patrol car sustained minor damage to its right front, resulting from the collision with the violator. TFC Cantrell's patrol car sustained minor scratches on its left side from debris when the violator's vehicle overturned.

TROOPER'S ABILITIES AND EXPERIENCE

1. Prior pursuits (compare if appropriate).

☐ N/A

If Yes, explain: TFC Cantrell has been involved in numerous pursuits over the course of his career as a Georgia State Trooper. This was Tpr. Noeller's second pursuit while a member of the Department.

2. Past use of techniques and high speed driving.

☐ N/A

If Yes, explain: TFC Cantrell and Tpr. Noeller have completed Basic EVOC, Advanced EVOC, and Pursuit-Ending Tactics training. TFC Cantrell has attempted Channelization during approximately 5 prior pursuits. This was Tpr. Noeller's first attempt to utilize a Rolling Roadblock during his career.

ISSUES ADDRESSED

1. Positives.

☐ N/A

If Yes, explain: Each Trooper exhibited good high-speed driving skills during the pursuit, and they communicated effectively as they attempted to terminate the pursuit. Each Trooper appeared to remain relatively calm. Upon engaging as the secondary unit, Tpr. Noeller began assisting in calling the pursuit.

2. Areas for improvement.

☐ N/A

If Yes, explain: Tpr. Noeller must employ his emergency siren at all times while operating his patrol car in emergency mode, pursuant to DPS Policy and Georgia State Law.

3. Other considerations.

☐ N/A

If Yes, explain: The pursuit was terminated when the violator changed lanes and struck Tpr. Noeller's patrol car during a Channelization attempt. The violator lost control and overturned his vehicle. Tpr. Noeller deployed his service weapon prior to effecting the arrest, and a Use of Force Report was completed. The violator's vehicle and helmet were determined to be stolen from a motorcycle dealership in South Carolina.

RESPONSE FROM TROOPER OR SUPERVISOR

1. Allow trooper and supervisor an opportunity to respond or add comments.

☒ N/A

If Yes, explain:

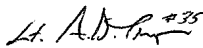
CORRECTIVE ACTION TAKEN

1. Describe any corrective action taken as a result of the trooper's actions during the pursuit.

☐ N/A

If Yes, explain: Tpr. Noeller was given a Documented Coaching Session for failure to immediately activate his emergency siren while operating his vehicle in emergency mode. The Documented Coaching Session further addressed Tpr. Noeller neglecting to don his campaign hat during the investigation that followed the pursuit.

Lieutenant A. S. Thompson #35
Reviewing Officer



3/18/2024
Date